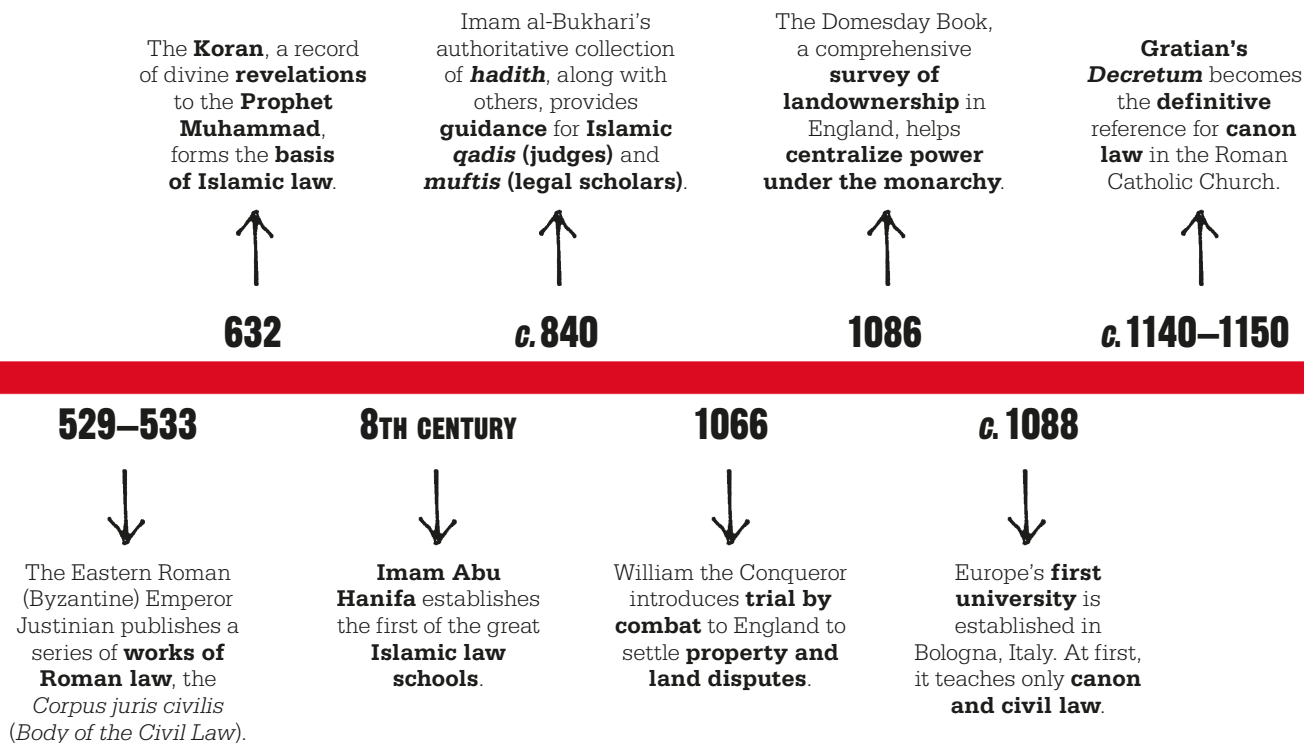




Even after the Western Roman Empire collapsed, the Roman Catholic Church remained a predominant cultural and political power in Europe throughout the Middle Ages. It had a monopoly on the dissemination of written texts—and the knowledge they contained—before the advent of printing, and consequently exercised a significant influence on government and the law. However, this period also saw struggles between the Church and monarchy and between the monarchy and its citizens for control of the law.

Meanwhile, in Arabia in the 7th century, the Prophet Muhammad founded the religion of Islam. He told of a divine revelation of the words of God, which he began preaching in Mecca in 610, and continued until his death in 632.

His followers collected the texts of the revelations in the Koran. The Prophet was also a skilled military and political leader, uniting warring tribes under a single constitution and amassing an army. Within a century of his death, Islam had spread from the Arabian Peninsula as far as South Asia and North Africa to create the Islamic Empire.

Codifying religious law

The Islamic Empire developed a sophisticated legal system that was inspired by Muhammad's example and based on study of the Koranic text. Muhammad's disciples had also recorded many *hadith*—sayings and actions ascribed to the Prophet and his family and companions. These *hadith*, once they had been verified by Islamic judges and legal scholars, provided commentary and

interpretation of the Koran. Together with the Koran, *hadith* became the basis for what was to become Sharia, or Islamic law.

The Roman Catholic Church also formulated its own laws, known as canons; they governed the beliefs and behavior of mainly the clergy at first, but later of the congregation, too. The Italian legal scholar Gratian was the first to compile the canons into a comprehensive treatise, called *Decretum Gratiani*. It was the first of six texts collected into the *Corpus juris canonici*, which was completed by the 14th century and became the definitive reference of canon law.

Islamic and Christian scholars also incorporated ideas from the Classical Greek philosophers, such as the concept of natural law, into their cultures. Gratian in his *Decretum* said that natural law